



Proposal for

Business Development from

Marketopia for

CeleriTech International Corp

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Introducing Marketopia

Marketopia is the premier marketing and lead generation agency for the IT channel. Our mission is to deliver world-class marketing, lead generation and sales enablement solutions to help companies in the IT channel find success. Our work provides our clients with a sustainable competitive advantage in the marketplace by leveraging the skill, experience and insight of our team. We have what it takes to help you enter new markets, launch new solutions, amp up your digital presence and accelerate results. We've helped hundreds of technology solution providers and vendors—from teams of one to enterprise companies—find success, from starting up to earning millions in revenue.

We Know Your Business.

Our team was intimately involved in growing consulting firms, distributors, cloud hardware and software firms prior to launching Marketopia. We've helped over 200 technology firms achieve their goals since our founding. Our experience provides a real-world basis for our recommendations. We are not guessing or assuming something that worked for another industry or target market will work for yours. Our leadership team has a great deal of experience running successful technology companies, including two honored by Inc. Magazine and two that averaged over 50% year-over-year growth. In fact, Marketopia itself grew 2,041% from 2015 to 2018 and consistently ranks on the Inc. Magazine's Inc. 500 List and Inc. 5000 List. Additionally, Marketopia holds an A+ rating from the Better Business Bureau of West Florida as an accredited business and has ranked the Fast 50 of Tampa Bay. We know how to grow, and we can help technology firms of any size reach their goals.



We Know the Channel.

We know the IT channel. We work with vendors, distributors and resellers to help them increase the number of inbound leads, increase the close percentage and better service their customers. Our team has created effective go-to-market strategies and dynamic marketing campaigns for IT service and consulting firms of all sizes and for enterprise companies like Cisco, ConnectWise, Xerox,



Extreme Networks, SAP and more to maximize their results. We provide horsepower needed for consulting firms, agents and IT service providers at a price point they can afford. Then, we leverage our connections to help our clients receive and capitalize on vendor marketing funds to help resellers grow their business.

**Marketopia leverages industry knowledge and relationships
to help you grow.**

Goals & Objectives

Celeritech International Corp is seeking to partner with an agency that knows the tech space and can deliver results and quality work to support their growth initiatives.

Celeritech is interested in growing with a strategic partner that can help them with generating leads and provide marketing services for their business solutions in the B2B food industry. The goal would be to generate leads with companies that sell to the restaurant and food industry. Partnering with Marketopia would allow Celeritech to scale the business and the internal sales team so they can focus on closing business.

Focus: Digital marketing and appointment setting lead generation.

Marketopia's Recommendation:

Based on Celeritech International Corp's stated growth goals Marketopia recommends aligning a full-time tele sales rep as well as marketing services as needed (video, email, social, asset creation etc.). The client has a goal of 80-100 SQLs for the year so that their sales team. Marketopia will guarantee the effort and the blend numbers (220 blend), and they will use the blend to work towards the goal (a full-time caller may make more sense to hit this goals). We will know more of the performance for this brand once we start calling.

Client Selection:

Celeritech International Corp has elected to move forward with a half-time level 4 caller and list rental services. Details regarding the services are to follow ---

Appointment Setting Service Detail:

- **Team** - 1Half-Time, Level 4 Caller
- **Program Timeline** - 12 Months
- **Caller Focus** - this caller will be focused on gaining appointments for the Celeritech team. Callers will set appointments for the internal Celeritech sales team.
 - Calling businesses in the B2B food industry to set appointments for the team. These businesses will be qualified based on their needs for the Celeritech solutions.
- **Qualification Criteria & Data** - Celeritech will provide data to Marketopia for the caller to call down on pulled from the data sources that Celeritech utilizes internally. Additionally, they may also procure lists from Marketopia at any point. Marketopia will target businesses to inform them of the Celeritech offering and set up appointments with qualified companies.

- **Process** - the Marketopia tele rep will set the appointment for the CeleriTech sales team using the provided email alias, conference bridge, and electronic calendar along with the call recording and details about the opportunity. The tele rep will attend the meeting to verify attendance and provide a warm handoff to the sales rep. If the prospect does not attend, the tele rep will contact the prospect to get them on the call live and reschedule.
- **Client Responsibility** - the client must provide the requested email alias and calendar access as well as their client list for use as a suppression list for the prospect contact list Marketopia will use to run the campaign.

Marketing Service Detail:

- **Team** - Part time Marketing Coordinator (10 hours per month) + SEO Package
- **Program Timeline** - 12 Months
- **Marketing Focus** -
 - Copywriting of emails and landing pages
 - Building and implementing landing pages (end-to end not just copy)
 - SEO and GEO
 - Content creation
- **Preferred Skills and Knowledge** -
 - Claude Code - Primary tool for rapid page scaffolding, component generation, responsive layout debugging, and CMS template development. Used daily by the development team.
 - Cursor - Evaluated and used alongside Claude Code. Available for projects requiring multi-file AI-assisted editing.
 - Seedance - AI Video Generation used for short-form video creation, product demos, social media content, motion graphics
 - Kling - AI Video Generation used for High-fidelity video generation, cinematic-style content, longer-form AI video production
 - Nano Banana - AI Creative Suite used for rapid visual content iteration, creative asset generation, campaign-specific visuals
 - Google Flow.- AI Video / VFX used for Rapid visual content iteration, creative asset generation, campaign-specific visuals
 - Shopify - Custom Liquid templates, theme development, product landing pages, checkout optimization
 - Wix - Velo (Wix's dev platform), custom forms, third-party integrations, responsive design
 - Wordpress - Custom themes, Elementor/Gutenberg, WooCommerce, plugin integration, performance optimization

Roadmap Recommendations:

To help CeleriTech International Corp see continued growth through our partnership, Marketopia recommends that CeleriTech International Corp plan to take the following steps:

- **Monthly: continue to work together to identify the business needs and how Marketopia can support them.**

Traditional Marketing: Appointment Setting

Marketopia provides clients with a competitive advantage in the marketplace by offering the industry's most robust extension of your sales team & materially increasing your market reach to maximize the number of engaged, qualified prospective clients and resellers.

Marketopia offers an evolved version of appointment setting called Business Development Representatives. Business development representatives are most beneficial to vendors that sell complicated solutions to what is frequently a resistant buyer. Your solutions can come across as complex because of price point, breadth or depth of capabilities, as well as the number of components that comprise the average solution. The buyer most commonly resists because of pressure from competing products and the need to adopt a new technology partner to fully capitalize on the power of solutions and achieve increased operational and financial performance. This combination does require a more evolved approach than traditional appointment setting—one that transcends cold introductions and truly cultivates a prospect engagement. We experimented with offshore appointment setting and discovered that the performance of full-time, W2 employees here in the U.S. was vastly superior. Our approach allocates a higher-level resource complemented by empowering technologies, marketing assets and significant industry training. These resources leverage best-of-breed technologies as well as a robust, ongoing training process to increase performance, especially in cases where the solution is complicated and challenging.

Our business development solution also largely differs from traditional appointment setting by embracing innovative approaches to develop that true engagement with prospects before an appointment, thereby forming a relationship. Our Business Development Representatives are 100% dedicated to your campaign, allowing them to develop deep competency in the product so they are able to work as an operational and a technical extension of your team. Marketopia will originate emails and calendar invitations from your email domain and will schedule appointments directly into the calendar of your salesperson. We strongly recommend you provide competitive intelligence and insight battle cards for use by Marketopia to overcome objection.

We remain engaged with the prospect until we are sure your team has the prospect engaged, even attending the initial sales call to both review the opportunity and transition the relationship to your salesperson. The reason is simple, to convert more prospects into transacting clients or partners.

Understanding Business Development Representatives

Business Development Representatives (BDRs) are specialized resources, leveraging a sophisticated process and empowering technologies to improve performance. Key differentiators which lead to success for our business development representatives include:

- BDRs are located at Marketopia's U.S. Office, not work-from-home environments that lack structure and quality control.
- Marketopia encourages a strong relationship between our clients and callers as it encourages loyalty and satisfaction of both. So, visit and get to know your BDR to work as a cohesive, successful team!
- Marketopia leverages experience producing for technology firms worldwide to create and oversee calling scripts that produce results. Scripts are available on request.
- Leverage a blend of industry-leading tools, best practices & the Salesforce.com process profiled in the predictable revenue book.
- Enterprise-class Salesforce.com CRM and an incredibly powerful dialing platform to improve results.
- Integration with your CRM:

Prospectopia efficiently and systematically integrates with the leading Professional Services Automation applications, including Autotask and ConnectWise. It also interfaces with leading CRM systems, including:

Autotask CRM	ConnectWise	HubSpot CRM
Infusionsoft	Kaseya	Salesforce*
SharpSpring	TargetPipeline	Zoho CRM

*The Lead Machine and Prospectopia require Salesforce Enterprise, Ultimate or Developer versions to support integration. For questions regarding your version of Salesforce or how to purchase the required API enablement, contact your Success Coach for further instruction.

Marketopia surrounds each Business Development Representative with the knowledge, experience and assets needed to succeed.

- **Business Development Representatives** dedicated to your campaign.
 - Average daily blend of 220 per caller. The blend is a simple formula that combines the number of dials and calculated talk time ($\text{Dials} + \text{Talk Time} = \text{Blend}$). This encourages quality dials that lead to quality conversations, which then convert to quality leads for you.

- Due to trainings, vacations and illness, a half-time caller is considered 16 hours per week and a full-time caller is considered 32 hours per week on average over the life of the contract*. During their time with you, they can attend meetings via phone or speak to you any time they are dedicated to your account. We have found that the closer you are with them, the more swag you send and the more you invest in teaching them about your business, the more successful they are at finding qualified prospects.

**Please note that calling hours and client availability tend to be reduced the week of Thanksgiving and the last two weeks of December, thus appointments tend to be lower during these periods. Marketopia requires that callers take a portion of those days off for being unproductive calling days, including the day after Thanksgiving and December 24 through January 1.*

- A **Backup Business Development Representative** is available to step in during extended absence greater than one week.
- A **Business Development Manager** serves as:
 - A **project manager** that manages the entire campaign and serves as the client's point of escalation for campaign issues & performance reporting.
 - A **team leader** that directly supervises the Business Development Representative and ensures we submit only quality appointments that meet the client's specifications and are viable opportunities.
 - A **trainer** that leverages instructional, roll play and motivational training techniques to ensure the resource can engage the prospect in meaningful dialogue.
 - A **motivator** that leverages gamification to inspire achievement in metrics and performance.

Our team operates as an extension of yours and is a reflection of you within the market. To ensure we make a positive impression, Marketopia leverages, at minimum, level 3 resources and equips them with the most empowering CRM system, power dialer and training program available. The level 1 and 2 resources commonly found offshore are typically successful with low-end sales. **For most enterprise level clients, we recommend starting with level 4 resources as they are more experienced and thus better at articulating your unique value proposition. More complex solutions or those being marketed to larger firms often benefit from level 5-7 callers.**

It takes months for even professional appointment setters to ramp up to full production as they grow to better understand your organization, your product offering and lead preferences. Average results will vary depending on the complexity and demand of the product, and thus accurate estimates cannot be provided prior to the launch of a custom vendor campaign. Factors that may impact results include reputation, market need, solution complexity, lead qualification criteria, geography, database and other factors.

For more advanced levels 6-10, each level increase costs an additional \$500 more per month, and resources can be promoted throughout the year as the consultants are rewarded for performance. The escalating rates empower Marketopia to compensate your resource based on experience and performance and ensure they remain loyal to Marketopia and you! We have also found that higher levels of resources are required as the complexity of the solution increases, the size of the prospect increases and expectations of success increase. If your Business Development Representative is promoted to a higher level, there is no requirement to continue with them or pay the increased fee.

For a calling campaign to be successful, it needs to have enough time for the caller to ramp-up to full production, as well as giving the sales team enough time to close deals resulting from these calling efforts, in order to show a clear ROI. Depending on the skill of the salesperson, this generally requires a campaign of 6 months or longer. However, Marketopia does offer shorter-term commitments for current clients looking to expand on a campaign currently running with optional extension durations of less than 6-months. These campaign extension services may be at a higher monthly cost.



Lead Qualification Criteria

To be considered a lead, Marketopia will only provide qualified, set appointments meeting three qualification criteria:

- **Defined Opportunity**
- **Defined Decision Maker**
- **Defined Timeline to Purchase < 180 days**

Necessary First Steps - Helping You Reach Success!

Marketopia's Business Development Representatives are ready to take your business to the next level. To ensure their success, and that they can be actively engaging your clients as soon as possible, we require that our clients provide us with the following information immediately after contract signing:

- Portal Profile Completed
- Completed Lead Qualification Sheet
- Suppression List Supplied
- PSA/CRM Integration Completed
- Email Alias Provided
- Sales Team Calendars Shared

Please note that calling campaigns are set to begin 10 business days after receipt of a signed contract and payment. This time is required for preparing and conducting your campaign's kickoff call, systems integration and data mapping. Client participation is required for successful implementation and can effect campaign start times.

Introducing The Growth Machine Platform

Marketopia stands alone as the only growth partner for technology vendors and service providers that offers both the industry's most robust marketing, lead generation and sales empowerment platform in the technology industry combined with a robust collection of services to execute marketing and lead generation campaigns to support your and your clients' growth goals. **The Growth Machine** is your all-in-one marketing, sales and lead generation platform and fully integrates with leading SFA, CRM and PSA systems. The marketing and sales automation system boasts a comprehensive suite of features and services that enables our team to stay in sync with you and your partners and provide the visibility, analytics and intelligence you need to maximize revenue, growth and profit.



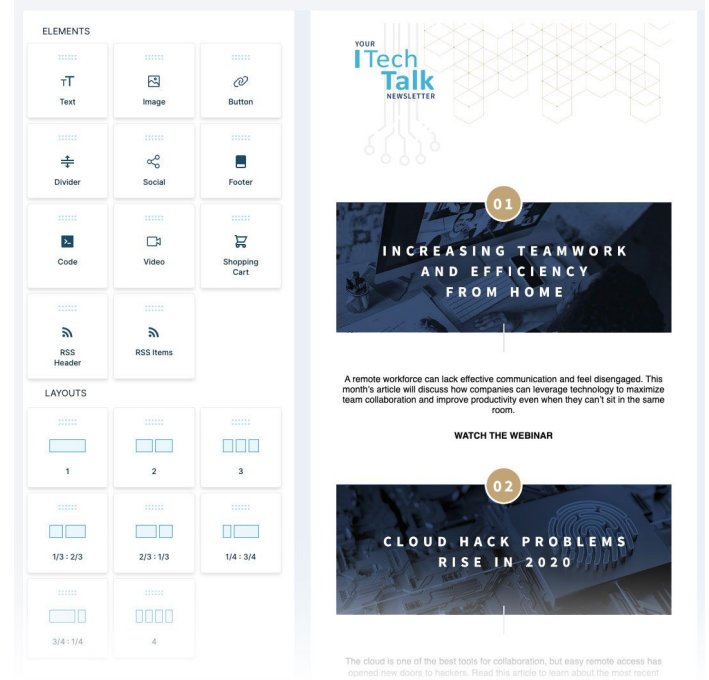
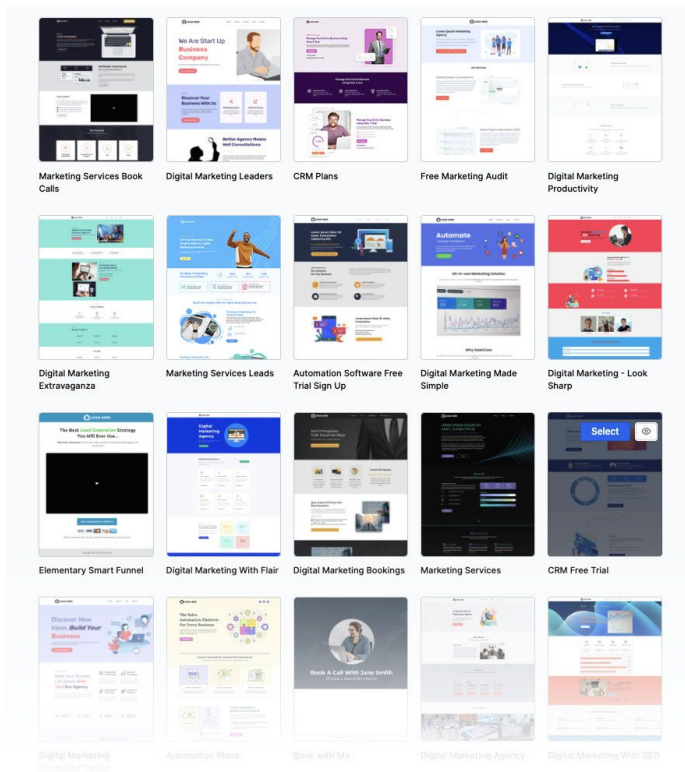
The Growth Machine Supports Your Partners with Amazing Features

Extensive Content Library

Your partners can choose from hundreds of technology marketing campaigns.

Custom Marketing Tools

Your partners can fully customize emails, landing pages, blogs and more.



Fast Deployment

Your partners can launch campaigns in minutes or let our experts do it for them.

Real-Time Reporting

You and your partners can track marketing leads (including call results) with analytical reporting.

Send or Schedule

Send Now
Send the email campaign immediately

Schedule
Pick a date and time to schedule

Batch Schedule
Schedule to large groups of contacts in drip mode

RSS Schedule
Ideal for blog posts or regular content feeds

Sender (From)

From Email
sendnow@thegrowthmachine.com

From Name
The Grow Machine

Email Subject

Subject line
Hot Tip: Grow Your MSP With Ins...

Preview Text (Preheader Text)
Terry Hedden shares best practic...

Recipient (To)

☒ Choose Contacts
☐ Send to Smart List
☐ Choose Contacts from Tags

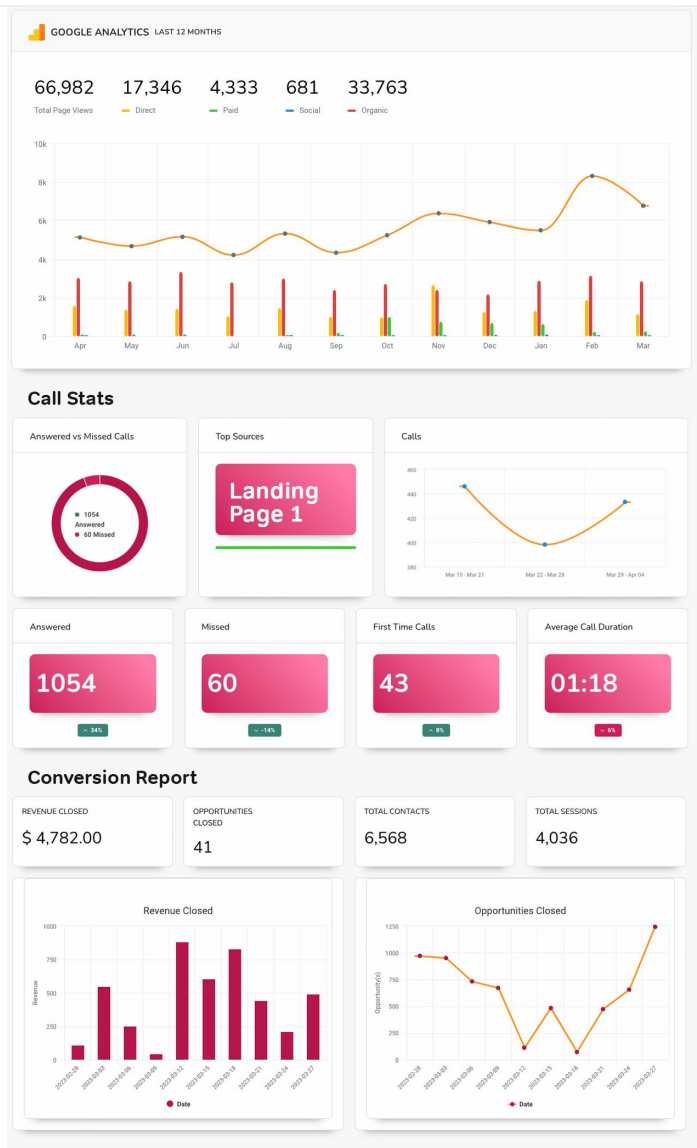
Cancel Save Send

Pipeline Review

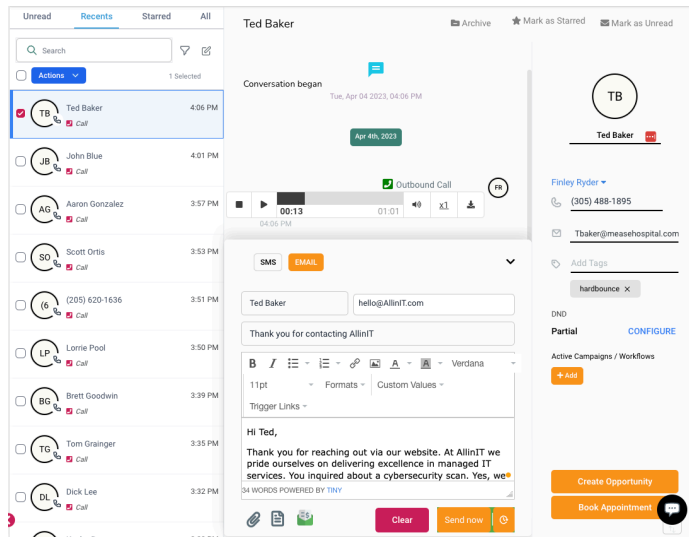
You and your partners can assess leads at each stage of the sales process to determine lead quality.

Appointment Set	Appointment Confirmed	Appointment Held	Onsite	Proposal
31 Leads \$900,000.00	4 Leads \$116,000.00	2 Leads \$230,000.00	1 Lead \$184,000.00	1 Lead \$70,560.00
Hubb Management LLC Parker Woods + Task	Ray Skillman Ford, Inc. Parker Woods + Task	Absolute Water Technologies Parker Woods + Task	Draco LLC marketopia + Task	AED Metals marketopia + Task
Oscar Winski Company & Lafayette Steel & Aluminum Parker Woods + Task	Absolute Water Technologies Parker Woods + Task	Every Child Ministries Parker Woods + Task		
Absolute Water Technologies Parker Woods + Task	Every Child Ministries Parker Woods + Task			
Every Child Ministries Parker Woods + Task	Oscar Winski Company & Lafayette Steel & Aluminum Parker Woods + Task			
Ray Skillman Ford, Inc. Parker Woods + Task				
Pro-Form Plastics Parker Woods + Task				

Unified Communication



Your partners can stay in touch with prospects and clients through their dashboard with chat tools for email, social media, websites, reputation management and more.



eLearning

Your partners can watch marketing and sales training videos directly from the platform.





Generate Content

Context *

Promotional

Content title *

IT Managed Services

Provide a brief content description *

Speak to the benefits of hiring an IT managed service provider to manage your technology needs.

Add keywords *

MSP X tech X managed services X cybersecurity X cloud X data back up X disaster recovery X +

Writing tone

Professional

Number of variations

- 3 +

Clear Generate

Mobile App

Your partners can view their dashboard, calendar, contact lists using The Growth Machine's mobile app. They can track leads on the go as well.




Choose Your Path with Our Role-Based Courses



4u2grow Virtual Workshop Series

The 4u2GROW Virtual Workshop Series is a monthly event intended to help MSPs/SMs/IT Service Providers to grow their business. Each month will feature:

- A new topic focused on sales and marketing best practices in the IT industry
- Interactive sessions led by industry experts



Sales Manager

Master the strategies you need to get the most out of your sales department.



Sales Professional

Learn each step of the sales process from the first meeting to closing the deal.



Marketing Professional

Unlock new ways to promote your business and cultivate new leads.



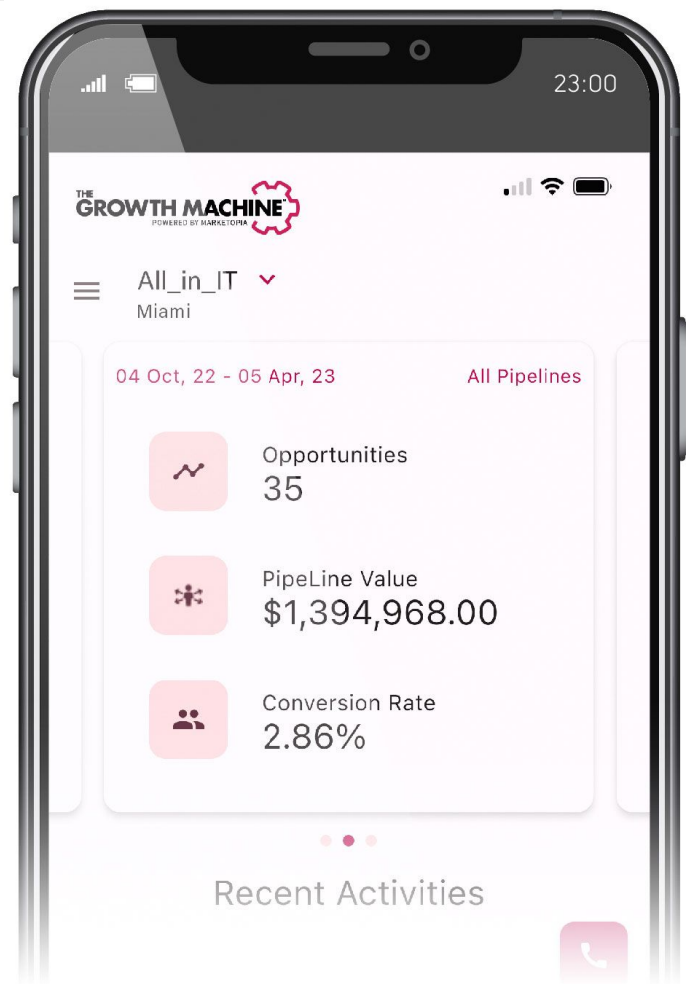
Business Development Professional

Keep new leads flowing in your pipeline by finding your ideal prospect.



Account Management

Find out what you need to develop long-term business relationships.

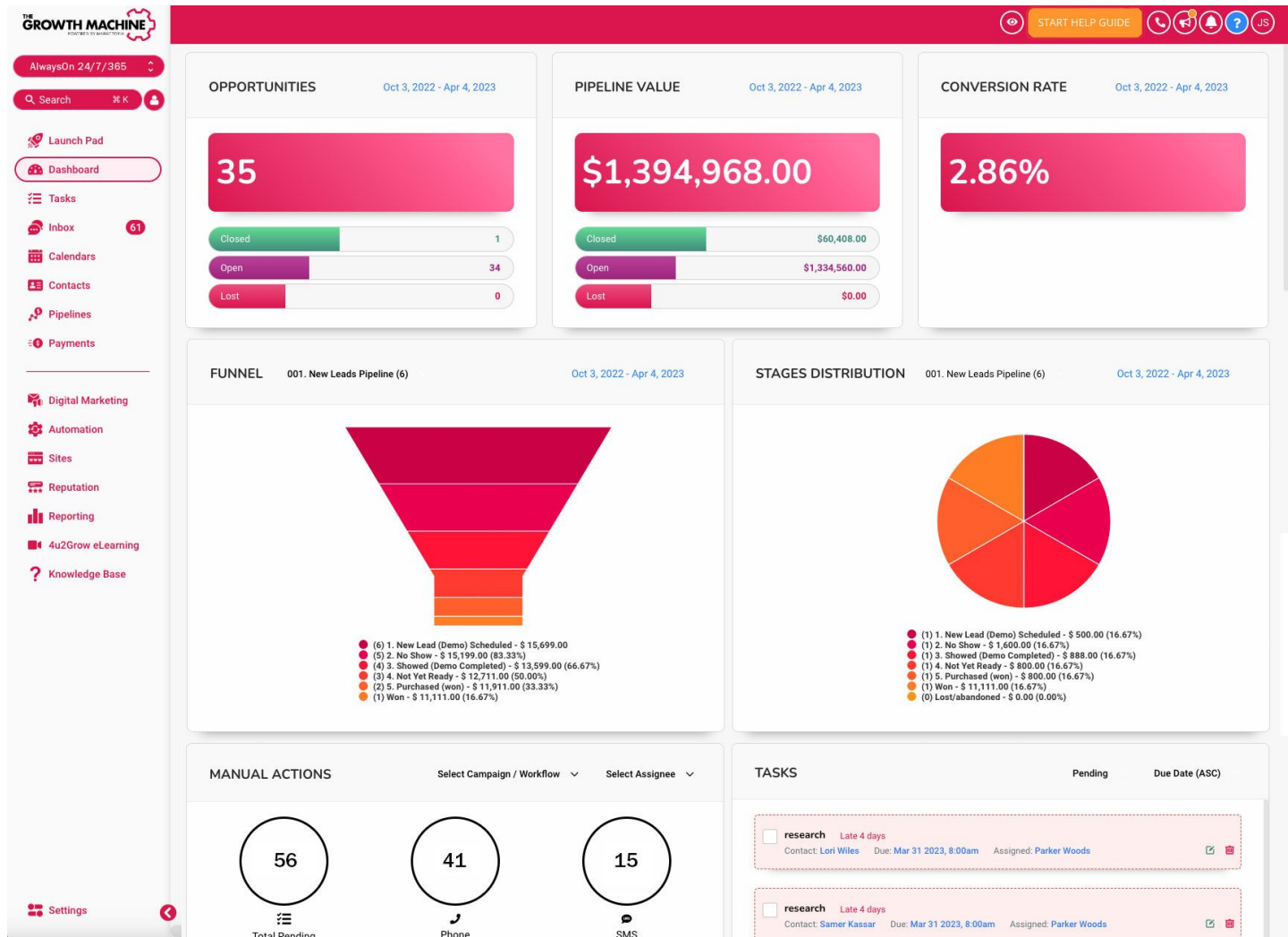


Although The Growth Machine offers a bevy of incredible do-it-yourself tools, when you leverage the robust platform with our team of experts, we can help you accelerate your growth goals by providing you and your partners with a comprehensive marketing experience that utilizes all of the platform’s incredible features. Every member of our **Marketing, Lead Generation and Sales Teams** can work in concert with you and your partners to turn prospects into clients.

Through marketing and lead generation activities conducted through the system, we identify the contacts interested in your services and ensure they stay engaged in the sales process. We execute **each digital marketing activity** utilizing the best practices for the discipline and fill your sales pipeline with **marketing qualified leads**. We then stay connected and engaged with prospects as they move through each phase of the sales pipeline.

Through the combination of The Growth Machine platform and our team of experts, we bring more prospects into the marketing funnel and nurture them through the process before our **Appointment Setters** convert them into sales appointments that your partners can close. Our system highlights interested

contacts based on their actions, thus uncovering leads you may not know you have. We call these **passive leads** that Appointment Setters will contact and engage with. We combine these leads with inbound leads to fill the pipeline with qualified leads from digital marketing and lead generation tactics.



The Growth Machine's Dashboard offers clear, end-to-end visibility into your opportunities, pipeline, conversion rate, funnel stages, and many other relevant areas of your marketing and sales activities.

Search Engine Optimization (SEO) Accelerator

It's no secret that getting to the top of Google and Bing Search engine results in website traffic that converts to leads. While SEM (search engine marketing) is a sure way to get to the first page by paying for it, SEO is the system of leveraging on and off-page techniques to get your website there organically without having to pay a cent for traffic. It isn't easy, but our team of highly skilled and trained engineers leverages every proven technique to get you there. It's a science that Google is motivated to change every day so you invest in SEM, but over time SEO is the way to go for high ROI website traffic!

Plan	Essentials	Basic	Intermediate	Advanced	Premium	Custom
Monthly Price	\$999	\$2,189	\$3,801	\$5,222	\$6,451	Varies
Effective Bulk Hours Discount	N/A	5%	10%	15%	20%	20%
KPIs						
Monthly SEO Specialist & Content Writer Hours Included to perform the tasks below	3	12	22	32	42	Varies
Pages with SEO Optimized Keyword (1 keyword per page)	3	5	10	15	20	Unlimited
Account Setup & Review	●	●	●	●	●	●
Keyword Selection Consultation	●	●	●	●	●	●
Ranking & Reporting	●	●	●	●	●	●
Google Submissions	●	●	●	●	●	●
Local Search Optimization	1 City	Up to 2 Cities	Up to 3 Cities	Up to 5 Cities	Up to 5 Cities	Varies

Plan	Essentials	Basic	Intermediate	Advanced	Premium	Custom
Business Citation Building	●	●	●	●	●	●
Google My Business Profile	●	●	●	●	●	●
Sitemap in .XML Format	●	●	●	●	●	●
Robots.txt file	●	●	●	●	●	●
Google Analytics Installed	●	●	●	●	●	●
Monthly Custom Blogs & Articles with SEO Optimization		1	2	3	4	4
Post Blogs to Social Channels		●	●	●	●	●
Onsite Edit Recommendation	●	●	●	●	●	●
Onsite Edit Implementation for Minor Changes	●	●	●	●	●	●
Onsite Optimization Content Audit			●	●	●	●
Onsite Optimization Content Recommendation			●	●	●	●
Duplicate Content Audit & Recommendation			●	●	●	●
Duplicate Content & Optimization Fix		1 pg/mo	3 pg/mo	5 pg/mo	5 pg/mo	●
Monitoring of Traffic & Google Analytics	Monthly	Bi-weekly	Weekly	Weekly	Weekly	Weekly

Plan	Essentials	Basic	Intermediate	Advanced	Premium	Custom
Conversion Optimization	●	●	●	●	●	●
Custom Market Research			●	●	●	●
Proactive Outreach to Build Reputable Backlinks			●	●	●	●
Competitor Tracking			●	●	●	●
Premium Audit			●	●	●	●
Premium Audit Fixes						●
Additional Web Pages Monthly						●
Premium Reporting						●

Selection Summary

Selection	Price	Quantity	Term (months)	Discount	Subtotal
Standalone Appointment Setting					
BDR Half-Time Level 4 - 12 Months February Promotion. 25% off months 1-4. Total discount is \$5,649. Client will pay \$5,178.25 monthly for the BDR. Total monthly discount is \$470.75	\$5,649.00	1	12	-\$5,649.00	\$62,139.00
					\$62,139.00
Marketing					
SEO Accelerator Intermediate - A La Carte SEO Accelerator - Intermediate Includes 22 Hours Monthly for SEO and Content Writing Specialists for SEO tasks listed in package at a discounted bulk rate. February Promotion. 25% off months 1-4. Total discount is \$3,801. Client will pay \$3,484.25 monthly for SEO. Total monthly discount is \$316.75.	\$3,801.00	1	12	-\$3,801.00	\$41,811.00
Part-Time Marketing Coordinator - 10 Hours Per Month	\$999.00	1	12	-\$999.00	\$10,989.00

A trained Marketing Coordinator dedicated to your account 10 hours per month! Term: 12 Month Minimum. Unused Hours Do Not Rollover To the Following Month. February Promotion. 25% off months 1-4. Total discount is \$999. Client will pay \$915.75 monthly for SEO. Total monthly discount is \$83.25.					
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\$52,800.00

Contacts

Contact Records Contact Records for Mailing, Calling & Emailing. Priced per contact records purchased. This product requires the sale of a one-time fee for data engineering: Contacts Purchase--Data Engineering and Upload Fee. Contacts purchased or provided are up to the stated amount. We cannot guarantee that we will secure the full quantity of requested contacts in your serviceable area on the initial request, based on your List Criteria Sheet. If we are unable to fulfill the full contracted amount, you will have the	\$0.20	6000	1	\$0.00	\$1,200.00
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option to make adjustments to your List Criteria Sheet and/or receive a credit for future contact purchases. Email addresses are not available for all contacts, therefore Marketopia may provide contacts without emails for in calling-only campaigns if we are unable to secure the requested quantity with email addresses.					
Accuracy exceeds 85% deliverability on emails, when provided.					
<i>Term: Paid In Advance</i>					
Contacts Purchase--Data Engineering and Upload Fee	\$499.00	1	1	\$0.00	\$499.00
Contact Promotion. Client will receive 6000 Contacts and the data engineering fee for free for completing a 1 on 1 sales process consulting meeting with Terry.	-\$1,699.00	1	1	\$0.00	-\$1,699.00
					\$0.00

Total Discount **-\$10,449.00**

Total **\$114,939.00**

Comments/Notes: Total Monthly payment is \$9,578.28. First payment due on contract. Payments due that are in excess of \$10,000 must be paid via ACH or check (ACH/Direct Bank Payment is preferred).

Approvals

	Marketopia		CeleriTech International Corp 1200 Brickell Avenue Miami, FL 33131 Owner/Principal
Name:	Terry Hedden	Name:	
Title:	CEO	Title:	
Phone:	727-316-8327 ext 808	Phone:	
Email:	terry.hedden@marketopia.com	Email:	
Date:		Date:	
Signature:		Signature:	
Growth Consultant:	Amber Kreeger	A/P Contact Name:	
		A/P Contact Email:	

Terms & Conditions

1. SERVICES PROVIDED AND SELECTION OF PLANS

Customer selects (and agrees to pay for as hereinafter stated) and Marketopia agrees to provide, those services as selected in the Solution Summary and as defined in the Marketing Plans and Marketing Plans in Detail Section. Customer represents that it has reviewed and been advised by Marketopia of the various services offered under the different Plans and understands the nature and extent of the services offered under the Plan or Plans it has selected. In addition to the services listed, Customer may agree to purchase add-on services or Jet Packs not purchased in this agreement and agrees that subsequent purchases will be considered addendums to this agreement and therefore subject to the same terms and conditions.

2. PAYMENT

Customer shall pay, on the date of this Agreement, for services provided under the Plan(s), the Monthly Fee. Invoices shall be processed each month by Marketopia for services to be provided the following month. Additional services requested by Customer and provided by Marketopia shall be billed and invoiced monthly and shall become due and payable within fifteen (15) days after the receipt of the invoice. In the event that customer is placed on Credit Hold for non-payment, customer remains liable for all monthly fees that may accrue. A late payment interest charge of 1.5% per month (or the highest rate permitted by law, if less) will be assessed on invoices not paid within 5 days of the specified invoice due date. If you fail to make any payments due, in addition to any other rights we may have, we may defer or delay any further work until such payments are made. If you fail to pay an invoice when it is due, you agree to pay all of the costs, expenses or damages we incur as a result of your failure to pay, including, without limitation, reasonable attorneys' fees and other costs of collection. For all payments of \$10,000 or higher, payment is preferred via ACH. For customers choosing to make a payment of \$10,000 or more via credit card, a service fee of up to 5% will be added to the invoice.

3. CLIENT DATA SECURITY

During the performances of Marketing Services, Client understands and agrees that its Client Data may temporarily reside on servers controlled by Marketopia, and that Marketopia will keep such Client Data secure. Client agrees that it will ensure that any Client Data shared with Marketopia does not contain the Sensitive Personally Identifiable Information of any individual person or group of persons. Sensitive Personally Identifiable Information shall mean identifying information that includes a first name or initial and a last name plus one of the following data elements: Social Security number, or a date of birth, or a driver's license number, or a state- or country-issued identification card number, or a financial account number or a credit or debit card account number.

3.1. CLIENT DATA USE AND ANTI-SPAM POLICY

Unless stated otherwise in an Order, Client shall not redistribute, remarket, sell, resell or relicense the Marketopia Content, or the Marketopia Service, to any third parties. Customer and Users shall comply with all laws and regulations applicable to bulk or commercial email service, including without limitation all local or national laws applicable to the regions where custom operations or where their email recipients are located, e.g., the United States CAN-SPAM Act of 2003. In addition, Customer and Users may not send any Unsolicited Email by use or means of the Marketopia Service. "Unsolicited Email" is defined as email sent to persons other than: (i) persons with whom You have an existing business relationship, OR (ii) persons who have consented to the receipt of such email, including publishing or providing their email address in a manner from which consent to receive email of the type transmitted may be reasonably implied. All Bulk or Commercial Email sent using the Marketopia Services must include provision for recipients to revoke consent, i.e., to "opt out", of receiving future email contacts from the sender. You shall either use the Unsubscribe tools supplied by default with the Marketopia Service; or, if You choose to override the Marketopia default tools, you shall have procedures in place to allow an email recipient to easily opt-out, such as an unsubscribe link in the body of the e-mail, or instructions to reply with the word "Remove" in the subject line. You shall honor any and all such revocations of consent within 72 hours. You shall be knowledgeable about and at all times compliant with all privacy and data protection laws applicable to its location and operations, such as, by way of example, the European Union Data Protection Directive and member state implementations thereof.

4. INTELLECTUAL PROPERTY

All documents, processes, programs, software, and designs (including all improvements) conceived or made by Marketopia, and delivered to Customer, during the course of providing services to Customer shall be the sole and exclusive property of Marketopia. Marketopia agrees that the customer may use the intellectual property shared by Marketopia for the duration of the agreement term. Marketopia agrees to joint ownership of all materials upon the receipt of the final payment for the entire contract term. Jet Pack deliverables are considered jointly owned upon receipt of the final payment for included deliverables. Failure to make full payment or a late payment of 60 days or greater will require Customer to return all materials and deliverables created by Marketopia and for Customer to cease using all materials and deliverables created by Marketopia.

5. LIMITATION OF WARRANTY

Marketopia warrants that the work we perform will be done in a workmanlike manner. The service offerings are provided "as is." We and our affiliates and licensors make no representations or warranties of any kind, whether express, implied, statutory or otherwise regarding the service offerings or the third party content, including any warranty that the service offerings or third party content will be uninterrupted, error free or free of harmful components, or that any content, including your content or the third party content, will be secure or otherwise not damaged. Except to the extent prohibited by law, we and our affiliates and licensors disclaim all warranties, including any implied warranties of merchantability, satisfactory quality, fitness for a particular purpose, non-infringement, or quiet enjoyment, and any warranties arising out of any course of dealing or usage of trade.

6. LIMITATION OF LIABILITY

Except as expressly required by law without the possibility of contractual waiver (A) neither Marketopia nor any of our employees, agents, representatives, service suppliers, or licensors, will be liable for any punitive, indirect, consequential or special damages, or for any lost profits, lost data, lost business, lost revenues, damage to goodwill, lost opportunities or loss of anticipated savings, even if advised of the possibility of the same and regardless of whether the claims are based in contract, tort, strict liability, infringement, or any other legal or equitable theory; and (B) the aggregate liability of us and our employees, agents and representatives to you under any theory of liability, wither in contract, tort, strict liability or otherwise, shall in no case exceed the lesser of the monthly fees paid to Marketopia under this Agreement or the fees paid to Marketopia for the portion of Services or Custom Software which give rise to the claim. All causes of action against Marketopia arising out of or relating to this Agreement or the performance or breach of this Agreement shall expire unless brought within one (1) year after the first date of performance or breach which in whole or in part gives rise to the claim. In the event of any breach by us of the limited warranty set forth above, your remedies will be limited to repair, replacement or correction of any such defective materials or services. Marketopia is not responsible for problems caused by client changes or modifications to the materials or deliverables for which the services are provided.

7. HIRING OF MARKETOPA PERSONNEL

Customer agrees that during the term of this Agreement and for a period of two years following the termination of this Agreement, it (i) will not induce or attempt to induce any employee, agent, representative or subcontractor of Marketopia to leave his or her employment with Marketopia, (ii) solicit or attempt to solicit any employee, agent, representative or subcontractor of Marketopia to leave his or her employment with Marketopia, or (iii) hire in any capacity any person who has been an employee, agent, representative or subcontractor of Marketopia at any time in the previous twelve months. Customer agrees that the violation of each of the non-solicitation obligations will cause Marketopia irreparable harm and will entitle Marketopia to, among other remedies, immediate injunctive relief. Customer agrees that each of the non-solicitation obligations are reasonable in both time and scope and are reasonably necessary to protect Marketopia's legitimate business interests. Customer understands that this provision is material to this Agreement.

8. CONFIDENTIALITY OF INFORMATION & SYSTEM ACCESS

Customer agrees to provide unfettered access to their Professional Services Automation tool to Marketopia for the purposes of electronically or manually retrieving data in an effort to improve the performance of the Customer's marketing program. Marketopia may provide summary level information to third parties (i.e. counts of clients, PCs, etc) to third parties but will not provide, sell or lease any of Customers detailed information without the Customer's permission. During the course of Marketopia provision of Knowledge, Services, and Solutions hereunder, each party may have access to information concerning the products and business of the other. Neither party shall make any use of such information of the other party except in connection with the exercise of its rights and responsibilities under this Agreement. Further, each party shall take all steps as may be prudent to prevent the disclosure of such information to third parties, but in no event shall such steps be less than the most stringent steps used by such party in protecting its own confidential and proprietary information. The commitments of confidentiality and non-use set forth above shall not extend to any portion of said information which, as a whole, a) can be documented to be known to recipient or the general public before disclosure hereunder; or b) hereafter, through no act on the part of the recipient hereunder become generally available to the public.

9. MISCELLANEOUS

9.1. AGREEMENT AMENDMENTS

This Agreement may only be changed by a written amendment to this Agreement executed by both parties by the below duly authorized representatives. For the purposes of adding services, an email indicating the purchase and approval by both parties will be considered a written amendment.

9.2. AUTHORIZED REPRESENTATIVES

The signatories below represent and warrant that they are authorized by their respective organizations to enter this Agreement.

9.3. COUNTERPARTS

This Agreement may be executed in one or more counterparts, each of which will be deemed to be an original copy of this Agreement and all of which, when taken together, will be deemed to constitute one and the same Agreement.

9.4. TERMINATION

This Agreement shall remain in full force and effect unless an Event of Default occurs: **Event of Default by Marketopia:** Marketopia shall be in default under this Agreement if Marketopia fails to materially perform or comply with the terms and conditions of this Agreement. If Marketopia fails to perform any of the services required by this agreement, Customer shall provide Marketopia with written notice of the non-performance within three days of Customer's discovery of such failure; the written notice shall be clearly identified as a "Non-Performance Notice," shall clearly and specifically identify the alleged non-performance, and shall be delivered via courier such as UPS or Federal Express or via registered mail, return receipt requested, to **3600 75th Terrace N, Pinellas Park, FL 33781 USA**. Marketopia shall use its best efforts to reasonably cure such failure within thirty days of receipt of the Non-Performance Notice. If Marketopia is unable cure the alleged non-performance in a reasonably acceptable manner in accordance with reasonable industry standards, Customer's sole remedy shall be termination of this agreement and the reimbursement of any unearned monies paid to Marketopia related to the non-performance of the specified items. In the event that Marketopia suspends service due to customer non-payment, Marketopia shall not be considered to be in default. **Events of Default by Customer:** Customer shall be in default under this Agreement if any of the following occur:

- Customer fails to make payment of any undisputed invoice within thirty (30) calendar days after it is rendered
- Customer fails to materially perform or comply with the terms and conditions of the Agreement

In the Event of Default by Customer, Marketopia will notify, in writing, the Customer of its intent to terminate the Agreement, and this Agreement shall be terminated as of the first day of the month following said notification.

9.5. TERM

The Agreement will remain in effect for the initial term from the contract approval date, as specified under the selected plan on the Solution Summary table above. This Agreement shall renew for the same specified term at the conclusion of the current contract's term, unless either party gives written notice (via email) of non-renewal at least 30 days prior to the last month of the term. Fees shall increase up to 10% each year, including multi-year contracts, unless otherwise communicated by Marketopia in writing prior to renewal.

9.6. CANCELLATION OF SERVICES PROCEDURE

Clients who are approaching windows of service termination as described above in section 9.5 (Term), and wish to cancel their services with Marketopia, are to notify Marketopia in writing to the email address "cancel@marketopia.com", and with the subject line 'Cancel Marketopia Services' at least 30 days prior to the end of the contract year. Cancellations will only be considered when notification is sent to this address. Written notification to other Marketopia representatives is not considered an acceptable form of cancellation notification.

9.7. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the law, without reference to principles of conflicts of laws, of the State of Florida.

9.8. ASSIGNMENTS

Neither this Agreement nor any rights hereunder may be assigned or otherwise transferred by either party, except to any corporation controlled by or under common control with the assigning party, or in connection with the acquisition of, or the sale of substantially all of, the assets of the business to which this Agreement pertains.

9.9. SEVERABILITY

If any provision or provisions of this Agreement shall be held to be invalid, illegal or unenforceable, the validity, legality and unenforceability of the remaining provisions shall not in any way be affected or impaired thereby.

9.10. VENUES AND JURISDICTION

Customer hereby (i) agrees that any litigation, action or proceeding arising out of or relating to this Agreement be instituted in a state or federal court in the city and state of Saint Petersburg, Florida, (ii) waives any objection which it might have now or

hereafter to venue of any such litigation, action or proceeding, (iii) irrevocably submits to the jurisdiction of any court in such litigation, action or proceeding, and (iv) hereby waives any claim or defense to inconvenient form.

9.11. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior contemporaneous written or oral agreements and representations between the parties with respect thereto. This Agreement shall not be deemed to extinguish or mitigate any payments, which are owed to Marketopia by Customer pursuant to the terms of any previous or other existing agreements between Marketopia and Customer. Customer acknowledges that it has read this Agreement, understands it and agrees to be bound by its terms and conditions.

9.12. ATTORNEYS FEES

In the event of a dispute under this Agreement, the party that prevails in such shall be entitled to reasonable attorneys' fees and costs.

9.13. FORCE MAJEURE

In no event shall either party be liable for any failure or delay in performance due to causes or circumstances beyond its reasonable control and without its fault or negligence (including, but not limited to, Acts of God, acts of the public enemy, acts of the United States of America, or of the District of Columbia, fires, floods, or other natural disaster, strikes or any other labor disputes, communication line failures, and/or freight embargoes). The party claiming such failure or delay must promptly notify in writing the other party of such failure or delay.

9.14. PERSONAL GUARANTEE

If Customer is a corporation, LLC, partnership, or other artificial entity, the undersigned person hereby personally and unconditionally guarantees punctual payment by Customer as required by this Agreement. The undersigned guarantor waives diligence, demand for payment, extension of time for payment, notice of acceptance of this guaranty, and indulgences and notice of every kind, and consents to any and all forbearances and extensions of the time for payment or performance under this Agreement and to any and all changes in the terms of this Agreement. Marketopia may enforce this guaranty without first resorting to or exhausting other remedies provided by the Agreement or the law. Guarantor agrees to pay all reasonable costs and attorneys' fees incurred by Marketopia in enforcing this guaranty. Guarantor signs this Guaranty in consideration of Marketopia's willingness to enter into this Agreement with Customer.

Payment Options

Please complete the form of payment information below, as well as the payment approval signature to complete your contract. Contracts will only be considered finalized with proper payment information provided.

By signing this form, I authorize Cloud Guru/Marketopia to initiate electronic charges via the ACH account indicated below per the frequency and amount indicated in this agreement and future charges authorized via email. I understand that charges and refunds may be made by Marketopia in the event of over or undercharge. I may revoke or cancel this authorization and enrollment by notifying Cloud Guru/Marketopia in writing.

Bank/ACH Payment Information Form

Bank/ACH Payment Information	
Routing Number	
Account Number	
Account Type	
Check Box for Permission to Schedule Automatic Payments	☐ I approve scheduled automatic payments
Email Address for Receipts	

Payment Approval Signature

Authorized Signature: _____

Signer Name: _____

Date: _____